a signal of 4 blasts of a whistle or horn to allow the passage of a tow or vessel in distress.

(e) The owner of or agency controlling the bridges shall place signs, of a size and description designated by the District Engineer, at each side of these bridges and at a distance of one-half mile above and below each bridge indicating the nature of the regulations of this section.

[Regs., October 12, 1955, 823.01-ENGWO] (Sec. 5, 28 Stat. 362; 33 U. S. C. 499)

[SEAL] JOHN A. KLEIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 55-8689; Filed, Oct. 27, 1955; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Subchapter F—Color of Title and Riparian Claims

[Circular No. 1937]

PART 141—COLOR OF TITLE AND RIPARIAN CLAIMS APPLICABLE TO PARTICULAR STATES

Section 141.25 is revoked in its entirety.

CLARENCE A. DAVIS,
Acting Secretary of the Interior.

OCTOBER 24, 1955.

[F. R. Doc. 55-8697; Filed, Oct. 27, 1955; 8:47 a. m.]

[Circular No. 1938]

PART 200—MINERAL DEPOSITS IN ACQUIRED LANDS AND UNDER RIGHTS-OF-WAY

LEASING OF MINERAL DEPOSITS OTHER THAN OIL, GAS, OIL SHALE, COAL, PHOSPHATE, POTASSIUM, SODIUM AND SULPHUR IN CERTAIN ACQUIRED LANDS

Section 200.50 is amended by adding a paragraph (d) thereto, as follows:

§ 200.50 *Fractional or future interest leases.* * * *

(d) *Rejection and termination of applications.* An application for a future interest lease filed less than one year prior to the date of the vesting in the United States of the present interest in the minerals will be rejected. Upon the vesting in the United States of the present possessory interest in the minerals, all applications for future interest leases outstanding at that time will automatically lapse and thereafter only offers for a present interest lease will be considered.

(Sec. 10, 61 Stat. 915; 30 U. S. C. 359)

CLARENCE A. DAVIS,
Acting Secretary of the Interior.

OCTOBER 24, 1955.

[F. R. Doc. 55-8696; Filed, Oct. 27, 1955; 8:47 a. m.]

[Circular No. 1939]

PART 250—PUBLIC SALES

Section 250.11 (b) (3) is amended to read as follows:

§ 250.11 *Action at close of bidding.* * * *

(b) *Preference right of purchase; declaration of purchaser.* * * *

(3) Where there is a conflict between two or more persons claiming a preference right of purchase, they will be allowed 30 days from receipt of notice within which to agree among themselves upon a division of the tracts by subdivisions. In the absence of an agreement an equitable division of the land will be made taking into consideraton such factors as (i) the equalizing of the number of acres which each claimant will be permitted to purchase, (ii) desirable land use, based on topography, land pattern, location of water, and similar factors, and (iii) legitimate historical use, including construction and maintenance of authorized improvements. If equitable considerations dictate, all of the subdivisions may be awarded to one of the claimants. Where only one subdivision is offered for sale and it adjoins the lands of two or more preference right claimants, it will, in the absence of equitable considerations requiring otherwise, be awarded to the applicant for the sale if he is a qualified preference-right claimant; if he is not, it will be awarded to the first qualified person who properly asserts such a preference right within or prior to the 30-day preference-right period. The manager will make the award by declaring the appropriate claimant or claimants purchasers of the land.

(R. S. 2478; 43 U. S. C. 1201)

CLARENCE A. DAVIS,
Acting Secretary of the Interior.

OCTOBER 24, 1955.

[F. R. Doc. 55-8695; Filed, Oct. 27, 1955; 8:46 a. m.]

Appendix—Public Land Orders

[Public Land Order 1232]

[Montana 018514 (SD)]

SOUTH DAKOTA

RESERVING PUBLIC LANDS WITHIN BLACK HILLS NATIONAL FOREST FOR PROTECTION OF IMPORTANT PREHISTORIC CARVINGS

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473), and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands within the Black Hills National Forest, South Dakota, are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining but not the mineral-leasing laws, and reserved under the jurisdiction of the Secretary of Agriculture, for the protection of important prehistoric carvings in furtherance of the act of June 8, 1906 (34 Stat. 225; 16 U. S. C. 431):

BLACK HILLS MERIDIAN

T. 7 S., R. 2 E.,
Sec. 25, E½.
T. 7 S., R. 3 E.,
Sec. 30, W½.

The areas described aggregate 640 acres.

This order shall take precedence over but not otherwise affect the existing reservation of the lands for national forest purposes.

F. E. WORMSER,
Acting Secretary of the Interior.

SEPTEMBER 29, 1955.

[F. R. Doc. 55-8694; Filed, Oct. 27, 1955; 8:46 a. m.]

[Public Land Order 1240]

[Misc. 1825763]

UTAH

WITHDRAWING LANDS FOR USE OF DEPARTMENT OF THE ARMY IN CONNECTION WITH DUGWAY PROVING GROUND; PARTLY REVOKING EXECUTIVE ORDER NO. 8579 OF OCTOBER 29, 1940

By virtue of the authority vested in the President by section 1 of the act of July 9, 1918, c. 143 (40 Stat. 845, 848; 10 U. S. C. 1341) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the public lands within the following-described areas, which are surveyed only in part, are hereby withdrawn from all forms of disposal under the public-land laws, including the mining and mineral-leasing laws, and reserved for use of the Department of the Army for military purposes:

SALT LAKE MERIDIAN

Tps. 6 and 7, S., R. 12 W.
T. 8 S., R. 12 W., W½.
Tps. 7 and 8, S., R. 13 W.,
T. 9 S., R. 13 W.,
Secs. 1, 2, 3, and 10 to 13, inclusive.

The public lands in the areas described aggregate approximately 103,485 acres.

This order shall attach to all the right, title and interest acquired by the United States to any of the non-public lands in the area withdrawn by this order, immediately upon acquisition by the United States of such right, title and interest.

2. Executive Order No. 8579 of October 29, 1940, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing lands for use of the War Department as an aerial bombing and gunnery range is hereby revoked so far as it affects any of the lands withdrawn by paragraph 1 of this order.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

OCTOBER 21, 1955.

[F. R. Doc. 55-8693; Filed, Oct. 27, 1955; 8:46 a. m.]

[Public Land Order 1241]

[Misc. 69256]

ARKANSAS

EXTENDING THE BOUNDARIES OF THE OUACHITA NATIONAL FOREST

By virtue of the authority vested in the President by Section 24 of the act of March 3, 1891 (26 Stat. 1103; 16 U. S. C. 471) and the act of June 4, 1897, (30 Stat. 34, 36; 16 U. S. C. 473), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The boundaries of the Ouachita National Forest are hereby extended to include the following-described lands in Arkansas, and, subject to vald existing rights, the public lands included therein are hereby made a part of the said national forest and hereafter shall be subject to all laws and regulations applicable thereto: Provided, That this order shall be applicable to any non-public lands within the area upon the acquisition of title thereto or control thereof by the United States:

FIFTH PRINCIPAL MERIDIAN

T. 1 N., R. 28 W.,
Secs. 3, 4, 5;
Sec. 6, E½NE¼, S½.
T. 1 N., R. 29 W.,
Sec. 1, E½NE¼SE¼, E½SE¼SE¼.
T. 2 N., R. 25 W.,
Sec. 4, S½NW¼, SW¼;
Sec. 5, S½NE¼, S½NW¼, S½;
Sec. 6, S½NE¼, SE¼.
T. 2 N., R. 28 W.,
Sec. 31, E½SE¼;
Sec. 32, S½;
Sec. 33, S½;
Sec. 34, S½.
T. 2 N., R. 30 W.,
Sec. 13, S½SE¼, SE¼SW¼.
T. 3 N., R. 25 W.,
Sec. 35, S½;
Sec. 36, S½.
T. 3 S., R. 28 W.,
Sec. 7, SE¼;
Sec. 8, W½SW¼.
T. 3 S., R. 29 W.,
Secs. 13, 14, 15, 16;
Sec. 17, N½;
Sec. 18, N½.

The areas described, including both public and non-public lands, aggregate 8,900 acres, of which the SE¼SE¼ sec. 6, T. 1 N., R. 28 W., is public land.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

OCTOBER 21, 1955.

[F. R. Doc. 55-8692; Filed, Oct. 27, 1955; 8:46 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[FCC 55-1043]

[Rules Amdt. 1-76]

PART 1—PRACTICE AND PROCEDURE

REPETITIOUS APPLICATIONS

In the matter of amendment of § 1.363 (a) of the Commission's rules and regulations.

At a session of the Federal Communications Commission held at its offices in Washington, D. C. on the 19th day of October 1955;

The Commission having under consideration the amendment of § 1.363 (a) on repetitious applications; and

It appearing, that the Amendment herein ordered would be in aid of orderly administrative procedure; and

It further appearing, that the amendment herein ordered is procedural in nature, and, therefore, compliance with the public notice and rule making procedure otherwise required by section 4 (a) and (b) of the Administrative Procedure Act is not required;

It is ordered, That pursuant to section 4 (i) and 303 (r) of the Communications Act of 1934, as amended, § 1.363 (a) of the Commission's rules and regulations is hereby amended, effective immediately, as set forth below.

(Sec. 4, 48 Stat. 1066 as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amen[illegible] 7 U. S. C. 303)

Released: [illegible]r 21, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

Section 1.363 (a) of the Commission's rules and regulations is amended to read as follows:

§ 1.363 *Repetitious applications.* (a) Where the Commission has, for any reason, denied an application for a new station, or for any modification of services or facilities, or dismissed such application with prejudice, the Commission will not consider a like application involving service of the same kind to substantially the same area by substantially the same applicant, or by its successor or assignee, or on behalf of or for the benefit of the original parties in interest, until after the lapse of 12 months from the effective date of the Commission's order. The Commission may, for good cause shown, waive the requirements of this section.

* * * * *

[F. R. Doc. 55-8701; Filed, Oct. 27, 1955; 8:48 a. m.]

[Docket No. 11181; FCC 55-1050]

[Rules Amdt. 3-59]

PART 3—RADIO BROADCAST SERVICES

POWER AND ANTENNA HEIGHT REQUIREMENTS ORDER EXTENDING EFFECTIVE DATE

In the matter of amendment of § 3.614 (b) of the rules governing television broadcast stations.

At a session of the Federal Communications Commission held in its offices in Washington, D. C., on the 19th day of October 1955;

The Commission has before it for consideration its Report and Order (FCC 55-802), issued in the above-entitled proceeding on July 22, 1955, amending § 3.614 (b) of its rules relating to antenna height and power requirements for VHF television stations in Zone I.

The amendment was originally scheduled to become effective on August 31, 1955. However, on September 1, 1955, the Commission issued an Order Extending the Effective Date to October 1, 1955, pointing out that several petitions had been filed with the Commission for reconsideration of its action in this proceeding and requesting that the effectiveness of the amendment be stayed pending such reconsideration. It was noted, also, that several requests had been submitted seeking postponement of the effective date of the amendment until the present studies of the Air Coordinating Committee on the subject of tall towers are completed. Oppositions to the various petitions for reconsideration and requests for stay have also been filed. On September 28, 1955, the Commission further extended the effective date to November 1, 1955.

Additional time will be necessary for the Commission to consider the above requests. Accordingly, the Commission believes that the public interest would be served by further staying the effectiveness of the amendment.

In view of the foregoing: *It is ordered,* That the effective date of the amendment of the Commission's rules and regulations adopted by its Report and Order issued July 22, 1955, in this proceeding, is extended to December 1, 1955.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: October 21, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 55-8728; Filed, Oct. 27, 1955; 8:52 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[26 CFR (1954) Part 1]

INCOME TAX: TAXABLE YEARS BEGINNING AFTER DECEMBER 31, 1953

NOTICE OF PROPOSED RULE MAKING

Notice is hereby given that, pursuant to the Administrative Procedure Act, approved June 11, 1946, the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue with the approval of the Secretary of the Treasury. Prior to the final adoption of such regulations, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing, in duplicate, to the Commissioner of Internal Revenue, Washington 25, D. C., Attention: T:P, within the period of 15 days from the date of publication of this notice in the FEDERAL REGISTER. The proposed regulations are to be issued un-